**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA**

**In the matter of an Appeal in terms of the Section 331 of the Code of Criminal Procedure Act No. 15 of 1979.**

Democratic Socialist Republic of Sri Lanka

**Complainant**

**Court of Appeal Case No.**
**CA HCC 0072/2024**

Vs.

High Court of Nuwara Eliya
Case No: HCR 85-2021

Govindan Kanapathy Ganeshan

**Accused**

**AND NOW BETWEEN**

Govinthan Kanapathy Ganeshan

**Accused-Appellant**

**Vs,**

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

**Complainant- Respondent**

**Before:** **Amal Ranaraja. J,**

**Dr. Sumudu Premachandra, J.**

**Counsel**: Amila Palliyage with Sandeepani Wijesooriya, Savani Udugampola, Sahan Hewawissa, Lakitha Wakishta Arachchi, Subaj De Silva and Gayathrika De Silva for the Appellant

Yuhan Abeywickrama D.S.G. for the State.

**Argued on**: 12.10.2026

**Judgment on**: 30.10.2026

## Judgment

**Amal Ranaraja. J,**

1. The accused-appellant (hereinafter referred to as the appellant) has been indicted in the High Court of Nuwara Eliya in Case No. HCR 85-21. The charges in the indictment are as follows;

    01. Between the time period of 01st of January, 2010 and 25th of May, 2010, in *Thalawakelle,* within the jurisdiction of this Court, you, in order to gain some sexual gratification, have placed your male genitalia in between the thighs of one *Nicholas Imelda,* a person under 16 years of age; thereby, you have committed the offence of 'Grave Sexual Abuse', punishable under Section 365B(2)(b) of the Penal Code of Sri Lanka as amended by the Penal Code (Amendment) Acts No. 22 of 1995, No. 29 of 1998 and No.16 of 2006.

02. At the same time, location, and course of action as the above first charge, you, in order to gain some sexual gratification, have caused the hands of one *Nicholas Imelda,* a person under 16 years of age, to caress your male genitalia; thereby, you have committed the offence of 'Grave Sexual Abuse', punishable under Section 365B(2)(b) of the Penal Code of Sri Lanka as amended by the Penal Code (Amendment) Acts No. 22 of 1995, No. 29 of 1998 and No.16 of 2006.

03. At the same time, location, and course of action as the above first charge, you, in order to gain some sexual gratification, have fondled the breasts of one *Nicholas Imelda,* a person under 16 years of age; thereby, you have committed the offence of 'Grave Sexual Abuse', punishable under Section 365B(2)(b) of the Penal Code of Sri Lanka as amended by the Penal Code (Amendment) Acts No. 22 of 1995, No. 29 of 1998 and No.16 of 2006.

2. At the conclusion of the trial, the appellant has been found guilty of the charges and sentenced as follows;

   i. 15 years rigorous imprisonment and a fine of Rs.5000.00 with a term of 3 months simple imprisonment in default in respect of the first charge.

      Further, the appellant has been directed to pay a sum of Rs.800,000.00 as compensation to PW01 with a term of 3 years simple imprisonment in default.

   ii. 2 years rigorous imprisonment and a fine of Rs.5000.00 with a term of 3 months simple imprisonment in default in respect of the second charge.

iii. 3 years rigorous imprisonment and a fine of Rs. 5000.00 with a term of 3 months simple imprisonment in default in respect of the third charge.

It has been further directed that the terms of rigorous imprisonment shall run concurrently.

3. The appellant being aggrieved by the conviction, disputed judgement, together with the sentencing order, has preferred the instant appeal to this Court.

**Case of the Prosecution**

4. At the time of the alleged incident PW01 has been a grade eight student at the *Tamil Maha Vidyalaya* in *Thalawakelle*. The appellant has been a teacher at that school. On the day of the alleged incidents, PW01 has contacted the appellant by phone and subsequently visited the appellant's quarters to discuss the question papers/answer scripts from a previously held examination. Upon PW01 entering the appellant's quarters, the appellant has allegedly fondled PW01's breasts. Thereafter, the appellant had lifted the sarong he was wearing and requested PW01 to caress his penis. When PW01 has not reacted, the appellant has taken PW01's hand, placed it on his penis and made PW01 caress it.

5. Thereafter, the appellant has taken PW01 to an adjoining room, placed her on a bed and engaged in intercrural sex, consequently. After some time, PW01 has disclosed the incidents involving the appellant to teachers at her school. Following this, a complaint has been made and an investigation commenced. PW01 has been subsequently presented for an examination by a consultant Judicial Medical Officer. The resulting medico-legal report has been produced as evidence marked *එ‍ළ 03*.

**Case of the Appellant**

6. The appellant has maintained that the teaching position is an honourable one, necessitating exemplary conduct from those involved. Accordingly, the appellant has asserted, having at all times, upheld the highest standards of behaviour and denied any involvement in the incidents detailed in the charges.

**Grounds of Appeal**

7. When the matter was taken up for argument the learned counsel appearing on behalf of the appellant has urged the following grounds of appeal;

    I. The learned Trial Judge erred in law by failing to consider the inconsistencies of the testimony of the prosecutrix.

    II. The learned Trial Judge erred in law by failing to consider that the medical evidence contradicts the testimony of the prosecutrix.

    III. The learned Trial Judge failed to consider the test of spontaneity and contemporaneity in the impugned judgement.

    IV. The learned Trial Judge erred in law by failing to consider that it is unsafe to act upon the uncorroborated testimony of the prosecutrix in light of the evidence elicited at the Trial Court.

    V. The findings of the learned Trial Judge in the impugned judgement are based on speculative surmises and conjectures not supported by evidence led at the Trial Court.

VI. The learned Trial Judge erred in law by failing to evaluate the dock statement of the Accused-Appellant in the correct premise.

8. When this Court examines the first to fifth grounds of appeal, it becomes clear that the appellant has argued that the testimony of the prosecution witness one (PW01) contains significant discrepancies. Consequently, the appellant has claimed that this testimony lacks credibility.

9. In light of these concerns regarding the reliability of PW01's testimony, the appellant has further asserted that corroboration of the testimony is essential. Therefore, the prosecution has not fulfilled its obligation to corroborate the testimony of PW01 adequately.

10. PW01 has testified as follows;

*ප්‍ර: එමිල්ඩා කිව්වනේ එමිල්ඩාගේ පපූ ප්‍රදේශය මේ චූදිත ඇල්ලුවා කියලා?*

*උ: එහෙමයි.*

*ප්‍ර: මං අහන්නේ ඒ වෙලාවේ ඔයාගේ ඇඳුම්වලට මොනවා හරි වුනාද?*

*උ: මට මතක තියෙනවා ස්කර්ට් එකයි බ්ලවුස් අකයි ඇදන් හිටිය බවට. ඒ සම්බන්ධයෙන් මට මතක නැහැ.*

*ප්‍ර: එමිල්ඩා තවදුරටත් සාක්ෂි ලබාදිලා කිව්වා මේ චූදිතගේ පුරුෂ ලිංගය අල්ලන්න කිව්වා කියලා?*

*උ: එහෙමයි.*

*ප්‍ර: ඒ කිවවේ කොයි අවස්ථාවේදි ද?*

*උ: කලින් කිව්ව කාමර දෙකෙන් එක් කාමරයකදි තමයි. එම තැනැත්තා මාගේ ඉදිරිපිටම ඇදේ වාඩි වෙලා මට අල්ලන්න කියලා කිව්වා.*

*Vide page 109 of the Brief*

*ප්‍ර:මෙහෙම චූදිතගේ පුරුෂ ලිංගය අල්ලන්න කිව්වාට පස්සේ මොකද වුනේ?*

*උ:අල්ලන්න බැහැ කියලා කිව්වා. මම බය වුනා. එම තැනත්තාගේ අතින් මගේ අත අල්ලලා ඒක ඇල්ලුවා ස්වාමීනි.*

*ප්‍ර:ඒ වෙනකොට චූදිතගේ ඇඳුම් කොයි විදිහටද තිබුනේ?*

*උ:සරමක් ඇඳගෙන හිටියා. සරම උස්සලා තමයි අල්ලන්න කිව්වේ ස්වාමීනි.*

*ප්‍ර:ඒ වෙලාවේ චූදිත සරමට යටින් මොනවා හරි ඇඳුමක් ඇඳගෙන හිටියද?*

*උ: නැහැ ස්වාමීනී.*

*ප්‍ර:ඒ වෙලාවේ එම්ල්ඩාට මොකක්ද දැනුනේ?*

*උ:වැරදියි කියලා හිතුනා. මම බය වුනා. එම අවස්ථාවේදී මට ඇඬුනා ස්වාමීනි.*

*ප්‍ර:එම්ල්ඩාගේ අත චූදිතගේ පුරුෂ ලිංගයට තියල ඒක ඇල්ලුවා කිව්වානේ?*

*උ:එහෙමෙයි.*

*ප්‍ර:එතකොට එම්ල්ඩාට චූදිතගේ පුරුෂ ලිංගය කොයි විදිහට ද දැනුනේ?*

*උ:ඇඟ එහෙම ගැන මට මතයක් නැහැ. එම අවස්ථාවේදී තිබුනු ආකාරයක් මට මතක නැහැ ස්වාමීනි.*

*ප්‍ර:ඒ වෙලාවේ චූදිතගේ පුරුෂ ලිංගය එම්ල්ඩා දැක්කාද?*

*උ:එහෙමයි.*

*...*

*ප්‍ර:ඊට පස්සේ මොකක්ද වුනේ?*

*උ:මට මතක තිබෙන විදිහට කියනවා. මම ඇඬුවට පස්සේ තවත් කාමරයක් තිබුණා. එම කාමරයට මා හට යන්න සිද්ධ වුනා. ඒ කියන්නේ මේ තැනැත්තා මාව එක්කරගෙන ගියා. ඒ ඇඳ මට වඩා උසට තුබුණා. ඊට පස්සේ මාව උස්සලා ඇඳේ තිබ්බා ස්වාමීනි.*

*ප්‍ර:එම්ල්ඩා කිව්වා ඔය සිද්ධිය වෙන්නේ වෙනත් කාමරයක කියලා?*

*උ:එහෙමයි.*

*ප්‍ර:එම්ල්ඩාව කවුද ඒ කාමරයට එක්කරගෙන ගියේ?*

*උ:සර් තමයි මාව එක්කරගෙන ගියේ ස්වාමීනි.*

*ප්‍ර:ඒ කාමරයේ ටිකක් උසට තියෙන ඇඳක් තියෙනවා කියලා කිව්වා?*

*උ:එහෙමයි.*

*ප්‍ර:ඒ කාමරයට ගියාට පස්සේ මොකක්ද වුනේ?*

*උ:එම තැනැත්තාගේ පුරුෂ ලිංගය මගේ කකුල් දෙක මැදට තියලා හොඳට තද කරන්න කියලා කිව්වා ස්වාමීනි.*

*ප්‍ර:ඒ වෙනකොට එම්ල්ඩාගේ ඇඳුම් කොයි විදිහට ද තිබුනේ?*

*උ:මගේ ස්කර්ට් එක ඉස්සිලා තිබුණා. සම්පූර්ණයෙන්ම නෙවෙයි බාගෙට ඉස්සිලා තිබුනේ ස්වාමීනි.*

*...*

*ප්‍ර:ඒ විදිහට චූදිතගේ පුරුෂ ලිංගය ඔයාගෙ කලවා අතර තිබ්බාට පස්සේ කොච්චර වෙලාවක් එහෙම තිබ්බාද?*

*උ:විනාඩි පහක් දහයක් විතර වෙන්න ඇති. ගොඩක් වෙලා නැහැ ස්වාමීනි.*

*ප්‍ර:ඒ වෙලාවේදී යම්කිසි ක්‍රියාවක් වුනාද එතනදී? එමිල්ඩා කිව්වානේ චූදිතගේ පුරුෂ ලිංගය එමිල්ඩාගේ කලවා අතර තිබ්බා කියලා?*

*උ:එහෙමයි.*

*ප්‍ර:ඒ වෙලාවදේ කිසියම් ක්‍රියාවක් කලාද චූදිත ඒ අවස්ථාවේදී.*

*උ:එහෙම මොකුත් මට මතක නැහැ ස්වාමීනි.*

*Vide pages 111 to 113 of the Brief*

11. That is the incidents described occurred in the appellant's quarters. These incidents involved the appellant fondling PW01's breasts. Subsequently, the appellant has taken PW01's hand and placed it on his penis, intending for PW01 to caress it. Finally, the appellant has laid PW01 on a bed and engaged in intercrural sex with her.

12. Discrepancies in statements or testimony refer to inconsistencies or variations in accounts provided by individuals regarding an event or a circumstance. Material discrepancies are those that hold significant implications for the case at hand. These inconsistencies can alter the meaning of the testimony, influence the credibility of the witness, or directly impact the outcome of the proceeding.

13. For example, if a witness testified about an event that had occurred but subsequently changes his account about the nature of such event, this inconsistency can be classified as material. The nature of an event can potentially affect the viability of a prosecution's argument. Therefore, material discrepancies have to be closely scrutinised to assess their relevance to the evidentiary framework.

14. Determining whether a discrepancy is material involves a careful evaluation of its context and the evidence as a whole. In legal contexts, the integrity of testimony is paramount to achieving justice and truth. When a testimony is fraught with material discrepancies, it undermines these foundational goals, leading to a lot of negative consequences.

15. The legal system relies on accurate and credible testimonies to establish facts and render decisions. When a witness presents conflicting testimonies/narratives, the reliability of such testimony/narrative is called into question. In legal settings each inconsistency can introduce reasonable doubt, creating an environment where truth becomes obscured. Moreover, the individual credibility of the witness is severely compromised in the face of material discrepancies.

16. A witness is often seen as the cornerstone of evidence. If his account is found to be inconsistent or contradictory, it can lead to questions regarding his reliability.

17. In the case of *Padmatilake (SGT) vs. Director General, Commission to Investigate Allegations of Bribery/Corruption [2009] 2 Sri. LR 151,* Chandra Ekanayake J., has held,

> *"Credibility of prosecution witnesses should be subject to judicial evaluation in totality and not isolated scrutiny by the Judge. When a witness makes inconsistent statements in their evidence either at one stage or at two stages, the testimony of such witnesses is unreliable and in the absence of special circumstances no conviction can be based on the testimony of such witnesses."*

18. Further, in the case of *Sucha Singh Vs. State of Punjab, (2003) 7 SCC 643,* it has been held,

> *"...normal discrepancies in evidence are those which are due to normal errors of observation, normal errors of memory due to lapse of time, due to mental*

*disposition such as shock and horror at the time of occurrence and those are always there however honest and truthful a witness may be. Material discrepancies are those which are not normal and not expected of a normal person. Courts have to label the category to which a discrepancy may be categorized. While normal discrepancies do not corrode the credibility of a party's case, material discrepancies do so... Where it is not feasible to separate truth from falsehood, because grain and chaff are inextricably mixed up, and in the process of separation an absolutely new case has to be reconstructed by divorcing essential details presented by the prosecution completely from the context and the background against which they are made, the only available course to be made is to discard the evidence in toto."*

19. Prior to being examined by *Dr. D.P.P. Senasinghe*, consultant Judicial Medical Officer, PW01 has provided the following statement to the doctor;



*Vide the Medico-legal report marked පැ 02*

20. Additionally, PW01 has provided a written notification to some teachers in her school regarding the alleged incidents involving the appellant. This note or letter has been produced as evidence marked *පැ 02*.

*උ:ගෞරවනීය ගුරුවරුන්ට. මෙම පාසැලේ එගෙනුම ලබන ශිෂ්‍යාවක් වන මා විසින් ලියනු ලබන්නේ නවවන ශ්‍රේණියට ගණිත පාඩම එගෙනීම් කටයුතු කරන ග්නේෂන් ගුරුවරයා එක් වතාවක් මා එක්ක වැරදි ලෙස හැසිරෙන්න උත්සාහ*

*කලා. පලවෙනි වාර පාසැලේ නිවාඩු කාලයේදී ගණිත පාඩම සම්බන්ධයෙන් ප්‍රශ්න පත්‍ර හරිගස්සන්න තියෙනවා, සියලු දෙනාම එක් වතාවක් ඒකට සහභාගී වෙන්න කියලා කිව්වා. මම ඉරිදා දිනයක එම තැනැත්තා එක්ක දුරකථන මාර්ගයෙන් සම්බන්ධවෙලා මම ක්වාර්ටස් එකට ගියා. එහි වෙන ශිෂ්‍යයන් ශිෂාවන් ආවේ නැහැ. <u>එම නිසා එම තැනැත්තා මා එක්ක වැරදි ලෙස හැසිරුණා.</u> මේක මම ගුරුවරුන් තුන්දෙනෙකුට පැවසුවා. ඒ ගොල්ලන් මාගේ හිත සැනසුවා. මේකට පියවරක් ගන්නා ලෙස මම ඉල්ලා සිටිනවා. 2010.05.12 වන දින හවස කාර්යාලයේ සිට එම අවස්ථාවේදේ මා හට නැවත බල කලා. ඉගෙනීම් කටයුතු කරන අවස්ථාවේදී නැවත මට මතක් කලා. එදින සිදු වෙච්ච සිදුවීම් සම්බන්ධයෙන්. මීට ශිෂ්‍යා එම්ල්ඩා. යනුවෙන් සඳහන් කර තිබෙනවා ස්වාමීනි.*

*Vide pages 117 & 118 of the Brief*

21. Regarding the statement or the short history provided by the patient, i.e. PW01, to *Dr. Senasinghe*, there has been no mention of the appellant allegedly fondling her breasts or engaging in intercrural sex with her. Similarly, concerning the note/letter marked *පැ 02*, PW01 has not recorded any incident stated in the charges. Such discrepancies being regarding the incidents described in the charges are material. Such discrepancies are material as they can influence the perception of the events and the credibility of the claims made. When the details surrounding these incidents are inconsistent, they raise questions about the validity of the testimony presented.

22. The learned Deputy Solicitor General has sought to clarify the discrepancies referred to above by highlighting portions of the testimony of PW01. The learned Deputy Solicitor General has contended that PW01's mother has translated the statement given by PW01 to the consultant Judicial Medical Officer. Furthermore, it has been suggested that the mother may have withheld certain details as a means of damage control. In addition, that PW01 has indicated uncertainty regarding whether she provided detailed or brief written

notification/letter to her teachers. That this raises questions about the completeness about the information communicated to the relevant parties.

23. *Dr. Senasinghe* has not indicated that the statement made by PW01 was translated by PW01's mother in a summarised manner. Furthermore, the prosecution has not included the mother of PW01 as a witness, nor presented her testimony to establish this fact. Additionally, regarding the note or letter authored by PW01, the relevant teachers have not testified that they instructed PW01 to summarise the alleged incidents involving the appellant. In fact, it appears that PW01 had been directed to present the facts in a detailed written format.

24. Moreover, it is important to note that PW01's claims have emerged after a considerable delay. This significant passage of time arises the possibility that these claims may have been an afterthought rather than an immediate recollection of events.

25. Consequently, the contention made by the learned Deputy Solicitor General must be regarded as weak and unsupported.

26. Based on the findings outlined above, it is clear that the sixth ground of appeal does not require further examination. The first to fifth grounds of appeal support the Court's conclusions, making additional discussion on the sixth ground redundant.

27. In those circumstances, I am inclined to interfere with the conviction, disputed judgement, together with the sentencing order, and proceed to acquit the appellant of the charges, and set aside the disputed judgement together with the sentencing order.

*Appeal allowed but I make no order regarding costs.*

28. The Registrar of this Court is directed to send this Judgement to the High Court in *Nuwara Eliya* for compliance.

**Judge of the Court of Appeal**

**Dr. Sumudu Premachandra, J.**

I agree

**Judge of the Court of Appeal**